

24STCV30055 24STCV30055

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-02

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 2, 2026

CASE NUMBER

24STCV30055

MOTION

Demurrer to Complaint

MOVING PARTY

Defendant PIH Health Good Samaritan Hospital

OPPOSING PARTY

Plaintiff Damecia Stingley

MOTION

Plaintiff Damecia

Stingley ("Plaintiff") sued Defendant PIH Health Good Samaritan Hospital ("Defendant"), alleging claims for negligence and premises liability. Defendant demurs to Plaintiff's complaint. After Defendant filed the demurrer, Plaintiff dismissed the first cause of action for negligence. As such, the Court considers the demurrer only as to the cause of action for premises liability. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

"The elements of a

cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) "Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm. (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.)

In this regard, Plaintiff

alleges Defendant "owned, maintained, controlled, possessed, repaired, and inspected the subject property in such a negligent, careless, and reckless manner so as to allow a dangerous condition, which created a fall hazard, to remain on the property in a state of disrepair constituting as [sic] a dangerous condition." (Complaint, ¶ 18; see also ¶¶ 6, 7 [allegations concerning the dangerous condition resulted from Defendant's improper maintenance, inadequate inspection, or failure to repair or replace broken equipment].) For pleading purposes, Plaintiff's allegations are to be accepted as true. As such, these allegations suffice. Defendant may obtain further information regarding Plaintiff's claims through the discovery process. (Khoury v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendant argues Plaintiff's claim for premises liability is a disguised claim for professional negligence; the one-year statute of limitations for such a claim should apply; and, therefore, Plaintiff's remaining claim is time-barred. At this stage of the litigation, the Court disagrees. Plaintiff alleges she sustained injuries in a fall, but she does not allege the precise nature of such injuries nor how they were sustained; and, for a premises liability claim, Plaintiff is not necessarily obligated to do so. Thus, the Court cannot determine from the face of the complaint Plaintiff's fall occurred as part of Defendant's provision of medical care to Plaintiff.

For that reason, the Court does not accept, at this time, Defendant's proposition *Flores v. Presbyterian Intercommunity Hospital* (2016) 63 Cal.4th 75 (*Flores*) applies to the facts and circumstances of the instant matter. *Flores* requires a determination be made any alleged negligent conduct and the patient's resulting injury were "integrally related to [the patient's] medical diagnosis and treatment." (*Id.* at p. 89.) Thus, in *Flores*, the California Supreme Court's decision hinged on the plaintiff's allegations concerning a doctor's medical decision after a medical assessment had been made. (*Ibid.*; see also p. 88 ["we conclude that whether negligence in maintaining hospital equipment or premises qualifies as professional negligence depends on the nature of the relationship between the equipment or premises in question and the provision of medical care to the plaintiff"].) In the instant case, Plaintiff makes no such allegations.

Therefore, based on the allegations in the operative complaint, which do not include any suggestion any medical assessment and decision were made which ultimately resulted in Plaintiff sustaining an injury, it would be premature to apply *Flores*' precepts at this juncture of the action.

Defendant, therefore, is left to raise this argument after conducting discovery and possibly by way of an evidentiary motion.

CONCLUSION AND ORDER

Defendant's demurrer to Plaintiff's complaint is overruled.

Defendant is to
answer the operative complaint within 20 days.

Defendant is ordered
to provide notice of the Court's ruling and to file proof of service of same.